SUBSTANTIVE CHIT 05 / HANDWRITTEN SUBMISSION / COPY PART I

THE THREE-KEY EVIDENCE STANDARD

Who decides whether contamination exists?

DELEGATION	COMMITTEE	MODERATED-CAUCUS FOCUS
JAPAN	UN GENERAL ASSEMBLY	SOURCE-STATE EVIDENCE AUTHORITY OVER TRANSBOUNDARY LEGACY CONTAMINATION

COPY PAGES 1–2 AS THE SUBMISSION.
The State that created the risk cannot remain the witness, laboratory and final judge.

EXACT HANDWRITTEN TEXT | PART I

Who decides whether contamination exists? Today, too often, the answer is one State: the State that created the risk. It controls the records, selects the model, calculates the dose and publishes the conclusion — then asks affected communities to disprove it without the evidence. The State that created the risk cannot remain the witness, laboratory and final judge.

Japan proposes the Three-Key Evidence Standard. Three independent keys must turn before an ecological threat is declared absent, contained or resolved.

KEY ONE — SOURCE RECORD PACKAGE

The source State preserves and releases non-sensitive records: test dates and locations, release estimates, plume data, environmental sampling results and monitoring history, with chain-of-custody notes. Security-sensitive material is protected; the ecological record is not.

CONTINUE DIRECTLY TO PAGE 2 →

SUBSTANTIVE CHIT 05 / HANDWRITTEN SUBMISSION / COPY PART II

THE THREE-KEY EVIDENCE STANDARD / CONTINUED

Exact handwritten text • continue without adding a second heading

KEY TWO — AFFECTED-STATE COUNTER-ASSESSMENT

Affected States may conduct or commission independent environmental sampling, receive the underlying data and technical support, and submit a counter-assessment on equal footing. A claim cannot be disproved with evidence that the claimant controls.

KEY THREE — PROTECTED INDEPENDENT REVIEW

A protected technical review, using information barriers and managed access, examines whether conclusions are supported by the evidence. No unannounced inspections. No weapon designs. No operational locations. No readiness information. No automatic liability.

EVIDENCE DISCIPLINE

Every finding is labelled: measured data, modelled estimate or unresolved uncertainty. Every dataset carries sampling location and date, detection limits, chain of custody, model assumptions, confidence range and version history. Labels, not adjectives, decide what the world may rely on.

> **CLASSIFICATION CAN PROTECT A SECRET.**
> **IT CANNOT MANUFACTURE INNOCENCE.**

HANDWRITING CHECKLIST

- Write the inline source numbers [1]–[9] where shown.
- Keep the three keys in order; do not merge Key Two and Key Three.
- Keep the final bold line as the final sentence.
- If space is short, shorten the Marshall Islands example — never shorten the three keys.

END OF TEXT TO HANDWRITE

RESEARCH SUPPORT / DO NOT COPY UNLESS SPACE PERMITS

THE EVIDENTIARY MONOPOLY, EXPOSED

Six shifts the Three-Key Standard demands

THE SHIFT TABLE

Element	Today	Under the Standard
Records	Held exclusively by the source State	Source Record Package with chain of custody
Data access	Discretionary	Affected-State access to non-sensitive data
Modelling	Source selects the model	Assumptions and confidence ranges disclosed
Dose conclusion	Source publishes alone	Counter-assessment on equal footing
Dispute resolution	Self-assessment	Protected independent review
Burden	Affected State must disprove	Evidence must carry its own label

WHY EACH KEY IS ACHIEVABLE

01 | SOURCE RECORD PACKAGE ALREADY PRACTISED IN PART	IAEA cooperation with Kazakhstan on the Semipalatinsk site relied on preserved records and technical assessments; release of non-sensitive ecological data is the minimum, while security-sensitive material stays protected.
02 | AFFECTED-STATE COUNTER-ASSESSMENT A RIGHT IN OTHER FIELDS	International environmental practice gives affected States access to information and participation in assessment; the Standard applies the same logic to nuclear legacies with technical support from existing institutions.
03 | PROTECTED INDEPENDENT REVIEW ALREADY PROVEN TECHNICALLY	The UK–Norway Initiative demonstrated managed access and information barriers for verification without exposing secrets; if barriers can protect warhead attributes, they can protect environmental records.

DRAFT-READY LANGUAGE

1. Invites source States to publish, on a voluntary basis, a non-sensitive environmental record package for nuclear-testing and weapons-production legacies;
2. Encourages affected States to conduct independent sampling and counter-assessment with technical support from existing institutions;
3. Recommends protected independent review of contested findings, using information barriers and managed access;
4. Calls upon all States to label findings as measured, modelled or unresolved, with the data fields set out above;
5. Decides to remain seized of the matter.

SECURITY AND LEGAL SAFEGUARDS

The Standard requires no disclosure of weapon designs, locations, readiness or doctrine; creates no new inspection powers; establishes no liability; and does not prejudice any State's position on the legality of nuclear weapons.

EVIDENCE LEDGER

SOURCES + PRECISION DECLARATIONS

Nine official or high-quality records supporting the handwritten submission

[1]	Hiroshima Peace Memorial Museum — Lucky Dragon The Daigo Fukuryu Maru operated outside the declared United States danger area; all 23 crew members were exposed to radioactive fallout.	https://hpmmuseum.jp/virtual/VirtualMuseum_e/exhibit_e/exh0307_e/exh03078_e.html
[2]	CTBTO — World overview of nuclear testing 456 tests conducted at the Semipalatinsk test site between 1949 and 1989.	https://www.ctbto.org/nuclear-testing/history-of-nuclear-testing/world-overview/
[3]	IAEA — Semipalatinsk testing-site environmental impact Technical cooperation and remediation assessment for the Semipalatinsk legacy.	https://www-pub.iaea.org/MTCD/Publications/PDF/Pub1063_web.pdf
[4]	U.S. Government Accountability Office — GAO-24-104082 The Marshall Islands nuclear testing legacy: 67 tests conducted between 1946 and 1958.	https://www.gao.gov/assets/gao-24-104082.pdf
[5]	United Kingdom–Norway Initiative — NPT working paper Managed access and information barriers protecting national-security and proliferation-sensitive information during verification research.	https://assets.publishing.service.gov.uk/media/5a79015fed915d04220670ca/npt_revcon_2010_jwp.pdf
[6]	UN General Assembly — Resolution 79/60 (2 December 2024) Addressing the legacy of nuclear weapons: victim assistance and environmental remediation.	https://documents.un.org/doc/undoc/gen/n24/391/05/pdf/n2439105.pdf
[7]	CTBTO — International Monitoring System The global verification network whose radionuclide stations detect airborne radioactive particles and gases.	https://www.ctbto.org/our-work/verification-regime
[8]	UNSCEAR Independent scientific assessment of radiation levels and effects.	https://www.unscear.org/
[9]	International Court of Justice — Advisory Opinion, 8 July 1996 Environmental considerations and the conduct of military operations.	https://www.icj-cij.org/index.php/node/103787

PRECISION DECLARATIONS

- The Lucky Dragon claim is limited to what the Hiroshima Peace Memorial Museum documents: the vessel was outside the declared danger area and the crew was exposed.
- The Semipalatinsk and Marshall Islands figures are verified historical test counts; the chit does not claim every former test site is uniformly contaminated.
- The IAEA Semipalatinsk programme is cited as an example of record-based technical cooperation, not as proof that all contamination there is resolved.
- The UK–Norway Initiative concerned research and exercises, not a currently binding universal inspection regime.
- The Three-Key Standard creates no inspection powers, no liability and no disclosure of weapon designs, locations, readiness or doctrine.
- The Standard is a voluntary policy proposal; nothing in it binds any State or prejudges any legal position.

JAPAN'S THREE KEYS:
Source record package. Affected-State counter-assessment. Protected independent review.